THE STATE
versus
WALTER MZEMBI

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE; 28 January, 2 & 17 February 2026

Criminal Trial

Assessors: Mr Mpofu
Mr Mhandu

B Murevanhema with A Mupini, for the state
E Samundombe with T K Mandiki, for the Accused

CHIKOWERO J:

[1] This is an application for the discharge of the accused at the close of the state case. It is made in terms of s 198(3) of the Criminal Procedure and Evidence Act [*Chapter 9:07*] (the Criminal Procedure and Evidence Act).

[2] That provision reads:

> "If at the close of the case for t he prosecution the court considers that there is no evidence that the accused committed the offense charged in the indictment, summons or charge, or any other offence of which he might be convicted thereon, it shall return a verdict of not guilty."

[3] In *S* V *Kachipare* 1998(2) ZLR 271 (S), in explaining what is meant by "no evidence" in S 198 (3) of the Criminal Procedure and Evidence Act, GUBBAY CJ, writing for the court, said at 276 D-E:

> "There is sound basis for ordering the discharge of the accused at the close of the case for the prosecution, where
>
> (i) There is no evidence to prove an essential element of the offence: see *Attorney General* v *Bvuma and Anor* 1987 (2) ZLR 96(S) AT 102 F-G;

(ii) There is no evidence on which a reasonable court, acting carefully, might properly convict: see *Attorney General* v *Mzizi* 1991 (2) ZLR 321 (S) at 323B;

(iii)The evidence adduced on behalf of the state is so manifestly unreliable that no reasonable court could safely act on it: see *Attorney – General* v *Tarwirei* 1997 (1) ZLR 575 (S) at 576 G."

[4] The use of the word "shall" in the provision under discussion means that a court determining an application such as the present has no discretion in the matter. It must discharge the accused if the criterion set out in s 198(3) of the Criminal Procedure and Evidence Act is satisfied.

[5] At this stage of the trial the issue is not whether the state has proved its case beyond reasonable doubt. Instead, as DUBE-BANDA J succinctly put it in *S* v *Hlambelo* 2020 (2) ZLR 762 H at 765 H:

> " At this stage of the proceedings, the simple question is; on the record is there evidence against the accused person which requires a reply from him"

[6] The accused is a former Cabinet Minister in the Government of Zimbabwe. He is on trial on a charge of criminal abuse of duty as a public officer as defined in S 174(1) (a) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Criminal Law Code)

[7] The allegations are that during the period spanning 2011 to 2014 and at the offices of the Ministry of Tourism and Hospitality Industry in Harare the accused, the then Minister of Tourism and Hospitality Industry and hence a public officer whose duties are set out in the annexure to the indictment and in the exercise of those duties unlawfully and knowingly acted contrary to or inconsistent with those duties by donating state property namely four sets of public viewing Area (PVA) screens to private entities. The private entities were the Zion Christian Church (ZCC), United Family International Church (UFIC) and Prophetic Healing and Deliverance (PHD) Ministries. Thus the allegations are that the accused unprocedurally and unlawfully donated one set of PVA screens each to ZCC and UFIC and two such sets to PHD Ministries.

[8] The indictment alleges that the law governing disposal of State property was not complied with when the accused donated the state property to the three private entities. That is where the abuse of duty as a public officer, by the accused, is alleged

to arise from and that the purpose was to show favour to ZCC, UFIC and PHD Ministries and disfavour to the Ministry of Tourism and Hospitality Industry.

[9] The law governing disposal of state property at the material time was the Public Finance Management Act [*Chapter 22:19*] (the PFM Act). This statute is administered by the Minister of Finance and Economic Development. Part 11 s 6 (2) (b) is adverted to in the indictment. It reads:

> Part 11
>
> CONTROL AND MANAGEMENT OF PUBLIC RESOURCES
>
> 6. Treasury to control and manage public resources
>
> (1) .....
>
> (2) The Treasury may by notice to officers concerned issue instructions or directions in terms of s 78 in relation to matters involving –
>
> (a) .....
>
> (b) the acquisition, receipt, custody, control, issue, sale, delivery, transfer or disposal of any state property.

[10] Now, the charge alleges that, as the accused was, in paraphrase, not his own person but accountable in the public office of Minister of Tourism and Hospitality Industry, the making of the donations was inconsistent with and contrary to his duties as Minister in that:

(1) Treasury authority and approval was not sought before the process of making those donations was initiated

(2) The three private entities did not make formal request for the donations prior to the donations being made.

(3) State property is not donated to private entities.

(4) There was no Treasury concurrence to the donations.

[11] I consider that there is evidence on record calling for a reply by the accused.

[12] This is an application which ought not to have been made. In his main submission Mr Samundombe overlooked the evidence admitted in terms of s 314 of the Criminal Procedure and Evidence Act. Even after Mr Murevanhema had traversed that evidence in opposing the application, counsel for the accused did not deal with the law relating to the effect of evidence admitted in terms of S 314. The

facts so admitted are sufficient evidence of those facts. The prosecution is relieved of the burden of leading other evidence to prove the admitted facts.

[13] Further, Mr Samundombe chose not to take advantage of the court's direction to comment on the evidence admitted formally in so far as it impacted on the application for discharge. The court takes the view that counsel realised that the accused would be unable to justify his persistence with the application the moment he attempted to grapple with that evidence.

[14] The evidence of Admire Mango, Promise Tichaona Chikuni, Samson Pasipamire and Farai Nyakawuru was admitted in terms of s 314 of the Criminal Procedure and Evidence Act. The summary of Mango's evidence reads as follows:

> " He is a senior Overseer with the Prophetic Healing and Deliverance Ministries. He is the Chief Administrator of the church. He knows the accused as the former Minister of Tourism and Hospitality Industry. He recalls sometime in November 2014 towards their Night Turn Around Event the accused pledged to donate a full set of public viewing Area Screens which had 40 panels as a way to promote tourism. He received the public viewing area screen donated to the church and same was delivered by the personnel from accused Ministry. The donation made had no conditions attached and is still with their church."

[15] As for Chikuni the evidence admitted is this:

> "he is a pastor with United Family International Church. He was the Head of Media for the Church during the period extending from 2012 to 2014. He knows the accused as the former Minister of Tourism and Hospitality Industry.
> He made a request to the executive of Senior Pastors that they required Public Viewing Area Screens. The Church then made a request formally to the accused. On the 30 March 2012 the accused donated full set of Public Viewing Area Screens which had 20 panels and he received it in his official capacity. He does not know any condition attached to the donation and the equipment is still in the custody of their church."

[16] As regards Pasipamire, the evidence admitted reads:

> "he is the Administration officer with the Zion Church based at Mbungo Estate Masvingo. He knows the accused as the former Minister of Tourism and Hospitality Industry, he recall that in April 2011 the Zion Christian Church at Mbungo Estate was opened. The accused was present during its official opening and he pledged to donate to their church a set of Public Viewing Area screens and its accessories. The pledge made was fulfilled on 27 July 2011 and Mr Tatuma Fundira received it on behalf of the church."

[17] As at the close of the State case, therefore, the record contains evidence that the accused donated PVA Screens to UFIC, PHD Ministries and ZCC. In respect of PHD Ministries and ZCC the donations were honoring pledges that the accused had personally made to these donees. The three churches are private entities. The PVA

Screens donated to them by the accused are state property. They were purchased through funds availed to the Ministry of Tourism and Hospitality Industry by the Ministry of Finance and Economic Development. The property did not belong to the accused. The Court takes the view that a case has been made for the accused to explain where he derived the authority not only to pledge but also to donate state property to private entities. He can only give that explanation in his defence case because a defence outline is not evidence. Further, he will need to explain why he addressed a letter to Prophet Walter Magaya of PHD Ministries describing the gift as a loan instead of that which it really was – a donation.

[18] How the accused came up with ZCC, UFIC and PHD Ministries as the donees of state property is for him to explain. This is so because not only are these private entities but they are not the only ones of their kind in this country.

[19] The record shows that the accused was aware that there were processes that needed to be followed before, during and after state property was availed to state owned companies, state entities and public institutions for use. At all times the property in question would remain state property. Hence, the letters authored by the accused reflecting that the Ministry of Tourism and Hospitality Industry had allocated state property to Mashonaland East, West and East provinces and, among others, the Zimbabwe Tourism Authority. Eric Chacha (the investigating officer), and Thokozile Chitepo (the Permanent Secretary in the Ministry of Tourism and Hospitality Industry at some point in time) both spoke to the absence of records indicating that processes had been followed in donating the PVA screens the subject of the trial. Further, unlike the PVA screens and other equipment which were not donated to government institutions by the Ministry of Tourism and Hospitality Industry at the material time (but simply availed for use by them, with conditions attached) the donations to the three churches were without conditions. This too the accused will need to explain.

[20] Even though the ultimate responsibility to safeguard and account for state property entrusted to the Ministry of Tourism and Hospitality Industry rested on the shoulders of the Permanent Secretary of that Ministry at the time and no such person was produced to testify for the prosecution, that in the court's view does not detract from the fact that the state has made a case for the accused to answer. It is not the

Permanent Secretary who made the pledges to the two churches. It is not the Permanent Secretary who donated State property to the three churches.

[21] The picture which emerges at this stage is that it is not the Ministry of Tourism and Hospitality Industry which donated the state property to the three churches.

[22] In light of all the foregoing the accused needs to give his reply.

[23] The application for discharge at the close of the case for the prosecution be and is dismissed.

CHIKOWERO J;.....

The National Prosecuting Authority, The State's Legal Practitioners
Samundombe and Partners, The Accused's Legal Practitioners